

UPSC INDIAN POLITY

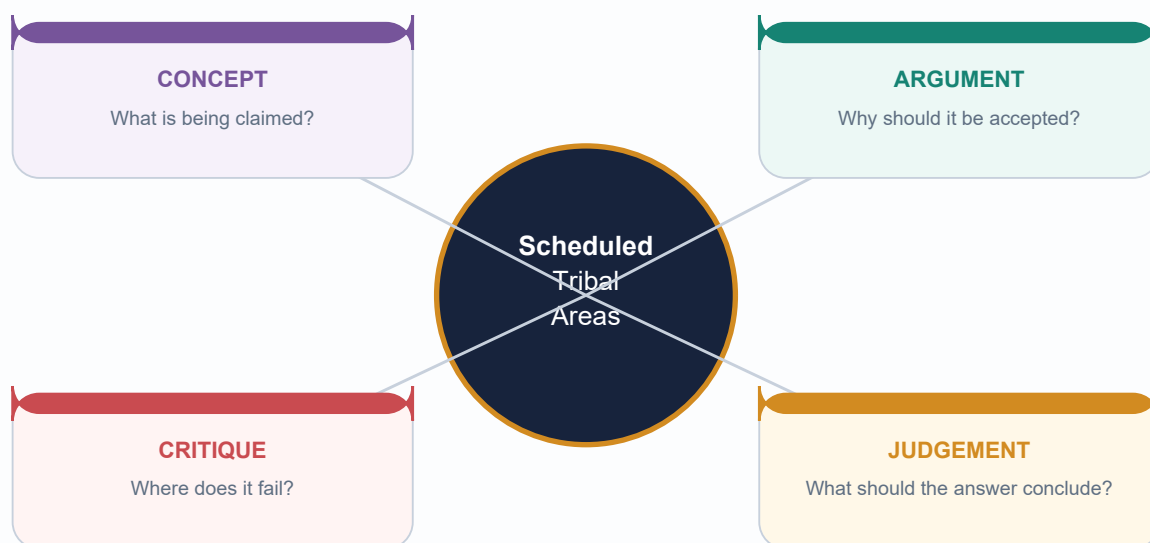
Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity • GS Paper II • Prelims + Mains

Layer 1: Basic foundation • Layer 2: Advanced constitutional and exam depth

Sources: Scheduled-and-Tribal-Areas.md + 26_Scheduled-and-Tribal-Areas.md

Learning cards: 16



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/26_Scheduled-and-Tribal-Areas.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/26_Scheduled-and-Tribal-Areas.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/26_Scheduled-and-Tribal-Areas.md.*

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

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INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Article / Part	Art 244, Part X
Fifth Schedule	Scheduled Areas in 10 states outside the Sixth-Schedule tribal-area scheme
Sixth Schedule	Tribal areas — Assam, Meghalaya, Tripura, Mizoram

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

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INTRO & ORIGIN

Art 244 gives a **special administration** for tribal regions. The **Fifth Schedule** (protective, President/ Governor-driven, advisory TAC) covers scheduled areas in most states; the **Sixth Schedule** gives **greater autonomy** via elected **Autonomous District Councils** in the four north-eastern states.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1 Art 244 gives a special administration for tribal regions. The Fifth Schedule (protective, President/ Governor-driven, advisory TAC) covers scheduled	Dimension 2 greater than □ Sixth Schedule = "A-M-T-M" — Assam, Meghalaya, Tripura, Mizoram.
Dimension 3 greater than □ 5th = advisory (TAC) · 6th = self-governing district/regional councils.	Dimension 4 greater than The ordinary Sixth-Schedule model is 26 elected + 4 nominated, but special constitutional

STATIC THEORY

- greater than □ **Sixth Schedule = "A-M-T-M"** — Assam, Meghalaya, Tripura, Mizoram.
- greater than □ **5th = advisory (TAC) · 6th = self-governing district/regional councils.**
- greater than The ordinary Sixth-Schedule model is 26 elected + 4 nominated, but special constitutional
- greater than amendments create exceptions such as the Bodoland Territorial Council.

MEMORY HOOK

greater than Sixth Schedule = "A-M-T-M" — Assam, Meghalaya, Tripura, Mizoram. | greater than 5th = advisory (TAC) · 6th = self-governing district/regional councils.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — **ADVANCED / COMPLETE** → Core idea

HIGH

Foundation · Must-Know Facts

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INTRO & ORIGIN

- **Fifth Schedule:** President declares scheduled areas; Governor sends **annual report**; **Tribes Advisory

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Fifth Schedule: President declares scheduled areas; Governor sends annual report; Tribes Advisory	Dimension 2 Council (20 members, 3/4 ST MLAs) advises.
Dimension 3 ☐ Sixth Schedule: ordinarily an Autonomous District Council has up to 30	Dimension 4 members (26 elected + 4 nominated) and elected members serve 5 years; the Bodoland Territorial Council has a special 46-member design under the 2003 a

STATIC THEORY

- Council** (20 members, 3/4 ST MLAs) advises.
- ☐ **Sixth Schedule:** ordinarily an Autonomous District Council has **up to 30
- members (26 elected + 4 nominated) **and elected members serve 5 years; the Bodoland Territorial Council has a special 46-member** design under the 2003 amendment.** Councils legislate on specified land, forest and customary matters, subject to gubernatorial assent.
- ☐ Commissions on scheduled areas: **Dhebar (1960), Bhuria (2002).**
- ☐ **Art 244A** — autonomous state within Assam.

MUST-KNOW FACTS

1. **Fifth Schedule:** President declares scheduled areas; Governor sends **annual report**; **Tribes Advisory
2. **Sixth Schedule:** ordinarily an Autonomous District Council has **up to 30
3. Commissions on scheduled areas: **Dhebar (1960), Bhuria (2002).**
4. **Art 244A** — autonomous state within Assam.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Must-Know Facts

HIGH

Foundation • ☐ Current link

GS-II Indian Polity

NEWS TRIGGER

- ☐ ☐ ☐ **Ladakh's demand for Sixth Schedule status** is a major live issue; **PESA (Fifth Schedule areas)** and the **Forest Rights Act** shape tribal Gram Sabha empowerment.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → [Current link](#)

HIGH**Advanced · Core Foundation**GS-II Indian
Polity**INTRO & ORIGIN**

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP**Core Foundation****Dimension 1**

greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II

Dimension 2

greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 41 (direct check of the local Sixth Revised Edition PDF).

Dimension 3

greater than ☐ = from source book · ☐ = inference / case law · ☐ = current affairs.

Dimension 4

greater than Companion: basic/Scheduled-and-Tribal-Areas.md.

STATIC THEORY

- greater than **Grounded in:** Indian Polity by M. Laxmikant, Ch. 41 (direct check of the local Sixth Revised Edition PDF).
- greater than ☐ = from source book · ☐ = inference / case law · ☐ = current affairs.
- greater than *Companion: basic/Scheduled-and-Tribal-Areas.md.*

MUST-KNOW FACTS

1. greater than = from source book · ☐ = inference / case law · ☐ = current affairs.

MAINS ANGLE**STUDY LINK**

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → Core Foundation

HIGH**Advanced · THE BIG PICTURE ☐**GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Schedule	Covers	Applies to
□ Fifth Schedule	Administration & control of scheduled areas & STs	Any state EXCEPT Assam, Meghalaya, Tripura, Mizoram
□ Sixth Schedule	Administration of tribal areas	The 4 NE states : Assam, Meghalaya, Tripura, Mizoram

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced · THE BIG PICTURE □

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Polity

INTRO & ORIGIN

- **Art 244 (Part X)** envisages a special administrative system for "**scheduled areas**" and "**tribal areas**":

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **10 states have Fifth Schedule Areas** (2019): AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan.

MUST-KNOW FACTS

- Art 244 (Part X)** envisages a special administrative system for "**scheduled areas**" and "**tribal areas**":
- 10 states have Fifth Schedule Areas** (2019): AP, Telangana, Chhattisgarh, Gujarat, HP, Jharkhand, MP, Maharashtra, Odisha, Rajasthan.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → THE BIG PICTURE □

HIGH

Advanced · PART A — FIFTH SCHEDULE
(Administration of Scheduled Areas) □ · Part 1GS-II Indian
Polity

INTRO & ORIGIN

- **Rationale**: inhabited by **aboriginals**, socially/economically backward → the normal state machinery is not fully extended and the **Centre has greater responsibility**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — FIFTH SCHEDULE (ADMINISTRATION OF SCHEDULED AREAS) □: RECALL MAP

PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □

Dimension 1 □ Rationale: inhabited by aboriginals, socially/economically backward → the normal state machinery is not fully extended and the Centre has greater re	Dimension 2 □ Declaration: the President declares/alters/rescinds a scheduled area (in consultation with the
Dimension 3 Governor).	Dimension 4 □ Executive power: state's executive power extends there, but the Governor has a special

STATIC THEORY

- **Declaration:** the **President** declares/alters/rescinds a scheduled area (in consultation with the Governor).
- **Executive power:** state's executive power extends there, **but the Governor has a special responsibility — **must send an annual report to the President; the Centre** can give directions** on administration.
- **Tribes Advisory Council (TAC):** every Fifth-Schedule state must set one up — **20 members, 3/4 being ST MLAs** of the state assembly.

MUST-KNOW FACTS

1. Rationale: inhabited by **aboriginals**, socially/economically backward → the normal state machinery is not fully extended and the **Centre has greater responsibility**.
2. **Declaration:** the **President** declares/alters/rescinds a scheduled area (in consultation with the
3. **Executive power:** state's executive power extends there, **but the Governor has a special
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MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □

HIGH

Advanced · PART A — FIFTH SCHEDULE (Administration of Scheduled Areas) □ · Part 2

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INTRO & ORIGIN

- **Governor's powers:** may direct that an Act of Parliament/state legislature does **not apply** (or applies

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- with modifications) to a scheduled area; may make **regulations** (prohibit/restrict land transfer among tribals, regulate money-lending) — all such regulations need the **President's assent**.
- ☐ **Commissions:** President appoints a commission on scheduled-area administration — compulsorily after **10
- years (**1st** = U.N. Dhebar, 1960; **2nd** = Dilip Singh Bhuria, 2002**).

MUST-KNOW FACTS

1. **Governor's powers:** may direct that an Act of Parliament/state legislature does **not apply** (or applies
2. **Commissions:** President appoints a commission on scheduled-area administration — compulsorily after **10

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — **ADVANCED / COMPLETE** → **PART A — FIFTH SCHEDULE** (Administration of Scheduled Areas) ☐

HIGH

Advanced · PART B — SIXTH SCHEDULE (Administration of Tribal Areas) ☐

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Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Feature	Detail
☐ Autonomous Districts	Tribal areas constituted as autonomous districts (still within state executive authority); Governor organises/reorganises them
☐ Autonomous Regions	Where different tribes exist within a district
☐ District Council	Ordinary model: up to 30 members — 4 Governor-nominated + 26 elected, 5-year elected term; Bodoland Territorial Council is a special 46-member exception
☐ Law-making	Councils legislate on land, forests, canal water, shifting cultivation, inheritance, marriage/divorce, social customs — need Governor's assent
☐ Judicial	Councils can constitute village councils/courts for tribal disputes
☐ Finance	Assess & collect land revenue + specified taxes; manage schools, markets, ferries, roads
☐ Acts don't auto-apply	Parliament/state Acts apply to autonomous districts only with modifications

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

HIGH

Advanced · PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

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INTRO & ORIGIN

□ For the **4 NE states** (Assam, Meghalaya, Tripura, Mizoram) whose tribes retain their own culture → given **autonomy** for self-government.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **Special Article 244A:** allows formation of an **autonomous state** within Assam (with its own legislature/CoM).

MUST-KNOW FACTS

1. For the **4 NE states** (Assam, Meghalaya, Tripura, Mizoram) whose tribes retain their own culture → given **autonomy** for self-government.

2. **Special Article 244A:** allows formation of an **autonomous state** within Assam (with its own legislature/CoM).

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART B — SIXTH SCHEDULE (Administration of Tribal Areas) □

HIGH

Advanced · PART C — FIFTH vs SIXTH SCHEDULE (compare) □ □

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INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Point	Fifth Schedule	Sixth Schedule
□ Applies to	Scheduled areas in 10 states (except the 4 NE)	Tribal areas in 4 NE states
□ Key body	Tribes Advisory Council (advisory)	Autonomous District/Regional Councils (law-making + executive)
□ Degree of autonomy	Lower (protective; Governor/Centre-driven)	Higher (genuine self-government with elected councils)
□ Declares/controls	President declares; Governor reports	Governor organises districts; councils legislate

MAINS ANGLE**STUDY LINK**

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → PART C — FIFTH vs SIXTH SCHEDULE (compare) □□

HIGH**Advanced • UPSC Traps**GS-II Indian
Polity**INTRO & ORIGIN**

Arunachal).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- the **President** declares **scheduled areas** (Fifth Schedule).

UPSC TRAPS

WRONG: Sixth Schedule applies to all NE states

CORRECT: only **Assam, Meghalaya, Tripura, Mizoram** (not Nagaland/Manipur/

WRONG: Fifth Schedule covers the whole country

CORRECT: **excludes the 4 Sixth-Schedule states.**

WRONG: Tribes Advisory Council makes laws

CORRECT: it is **advisory** only; the **District Councils** (Sixth Schedule) legislate.

WRONG: District Council has 30 all-elected members

CORRECT: **26 elected + 4 nominated** by the Governor.

WRONG: President declares tribal areas under the Sixth Schedule

CORRECT: the **Governor** organises autonomous districts;

WRONG: Fifth-Schedule regulations need the Governor's assent

CORRECT: they need the **President's** assent.

MAINS ANGLE**STUDY LINK**

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — ADVANCED / COMPLETE → UPSC Traps

HIGH

Advanced • CA hooks

GS-II Indian
Polity

NEWS TRIGGER

▣▣▣ **Ladakh's demand for Sixth Schedule status** (tribal-majority UT) — a major live agitation (links to Ch 22 & Ch 25). ▣▣▣ **PESA (1996)** extends Panchayat provisions to **Fifth Schedule** areas — Gram Sabha empowerment (links to

INTRO & ORIGIN

Ch 23).

Advanced learning layer: concepts → constitutional detail → UPSC application.

▣ CA HOOKS: RECALL MAP

▣ CA hooks

Dimension 1
Ch 23).

Dimension 2
▣▣▣ Forest Rights Act 2006 & tribal land alienation, mining consent, Governor's under-used special powers.

Dimension 3
▣▣▣ Demands for new autonomous councils (e.g., in Assam) & Bodoland accord implementation.

STATIC THEORY

- ▣▣▣ **Forest Rights Act 2006** & tribal land alienation, mining consent, Governor's under-used special powers.
- ▣▣▣ Demands for **new autonomous councils** (e.g., in Assam) & Bodoland accord implementation.

MAINS ANGLE

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — **ADVANCED / COMPLETE** → ▣ CA hooks

HIGH

Advanced • Mains angles

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

Compare the Fifth and Sixth Schedules as models of tribal self-governance — which better protects tribal identity? "The Governor's special responsibility under the Fifth Schedule remains largely dormant." Examine. Should the Sixth Schedule be extended to Ladakh and other tribal regions? Discuss.

STUDY LINK

Scheduled & Tribal Areas (Article 244, Fifth & Sixth Schedules, Part X) — **ADVANCED / COMPLETE** → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI